

HOUSE OF REPRESENTATIVES - FLOOR VERSION

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR
HOUSE BILL NO. 1739

By: Chapman, Moore, Ford, and
Caldwell (Trey) of the
House

and

Paxton of the Senate

COMMITTEE SUBSTITUTE

An Act relating to retirement; amending 62 O.S. 2021, Section 3103, as last amended by Section 2, Chapter 361, O.S.L. 2024 (62 O.S. Supp. 2025, Section 3103), which relates to the Oklahoma Pension Legislation Actuarial Analysis Act; modifying terms; amending 47 O.S. 2021, Sections 2-304, as amended by Section 2, Chapter 45, O.S.L. 2025, and 2-305, as last amended by Section 9, Chapter 151, O.S.L. 2023 (47 O.S. Supp. 2025, Sections 2-304 and 2-305), which relate to the Oklahoma Law Enforcement Retirement System; modifying employer contribution; modifying employee contribution; modifying top base salary provisions; modifying positions that receive certain benefit computation; providing that certain provisions apply to certain individuals; providing effective dates; providing for contingent effective dates based on outcome of approval of the emergency clause; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 62 O.S. 2021, Section 3103, as
2 last amended by Section 2, Chapter 361, O.S.L. 2024 (62 O.S. Supp.
3 2025, Section 3103), is amended to read as follows:

4 Section 3103. As used in the Oklahoma Pension Legislation
5 Actuarial Analysis Act:

6 1. "Amendment" means any amendment, including a substitute
7 bill, made to a retirement bill by any committee of the House of
8 Representatives or Senate, any conference committee of the House or
9 Senate or by the House or Senate;

10 2. "RB number" means that number preceded by the letters "RB"
11 assigned to a retirement bill by the respective staffs of the
12 Oklahoma State Senate and the Oklahoma House of Representatives when
13 the respective staff office prepares a retirement bill for a member
14 of the Legislature;

15 3. "Legislative Actuary" means the firm or entity that enters
16 into a contract with the Legislative Service Bureau pursuant to
17 Section 452.15 of Title 74 of the Oklahoma Statutes to provide the
18 actuarial services and other duties provided for in the Oklahoma
19 Pension Legislation Actuarial Analysis Act;

20 4. "Nonfiscal amendment" means an amendment to a retirement
21 bill having a fiscal impact, which amendment does not change any
22 factor of an actuarial investigation specified in subsection A of
23 Section 3109 of this title;

24 5. "Nonfiscal retirement bill" means a retirement bill:

- 1 a. which does not affect the cost or funding factors of a
2 retirement system,
- 3 b. which affects such factors only in a manner which does
4 not:
- 5 (1) grant a benefit increase under the retirement
6 system affected by the bill,
- 7 (2) create an actuarial accrued liability for or
8 increase the actuarial accrued liability of the
9 retirement system affected by the bill, or
- 10 (3) increase the normal cost of the retirement system
11 affected by the bill,
- 12 c. which authorizes the purchase by an active member of
13 the retirement system, at the actuarial cost for the
14 purchase as computed pursuant to the statute in effect
15 on the effective date of the measure allowing such
16 purchase, of years of service for purposes of reaching
17 a normal retirement date in the applicable retirement
18 system, but which cannot be used in order to compute
19 the number of years of service for purposes of
20 computing the retirement benefit for the member,
- 21 d. which provides for the computation of a service-
22 connected disability retirement benefit for members of
23 the Oklahoma Law Enforcement Retirement System
24 pursuant to Section 2-305 of Title 47 of the Oklahoma

- 1 Statutes if the members were unable to complete twenty
2 (20) years of service as a result of the disability,
3 e. which requires membership in the defined benefit plan
4 authorized by Section 901 et seq. of Title 74 of the
5 Oklahoma Statutes for persons whose first elected or
6 appointed service occurs on or after November 1, 2018,
7 if such persons had any prior service in the Oklahoma
8 Public Employees Retirement System prior to November
9 1, 2015,
10 f. which provides for a one-time increase in retirement
11 benefits if the increase in retirement benefits is not
12 a permanent increase in the gross annual retirement
13 benefit payable to a member or beneficiary, occurs
14 only once pursuant to a single statutory authorization
15 and does not exceed:
16 (1) the lesser of two percent (2%) of the gross
17 annual retirement benefit of the member or One
18 Thousand Dollars (\$1,000.00) and requires that
19 the benefit may only be provided if the funded
20 ratio of the affected retirement system would not
21 be less than sixty percent (60%) but not greater
22 than eighty percent (80%) after the benefit
23 increase is paid,
24

- 1 (2) the lesser of two percent (2%) of the gross
2 annual retirement benefit of the member or One
3 Thousand Two Hundred Dollars (\$1,200.00) and
4 requires that the benefit may only be provided if
5 the funded ratio of the affected retirement
6 system would be greater than eighty percent (80%)
7 but not greater than one hundred percent (100%)
8 after the benefit increase is paid,
- 9 (3) the lesser of two percent (2%) of the gross
10 annual retirement benefit of the member or One
11 Thousand Four Hundred Dollars (\$1,400.00) and
12 requires that the benefit may only be provided if
13 the funded ratio of the affected retirement
14 system would be greater than one hundred percent
15 (100%) after the benefit increase is paid, or
- 16 (4) the greater of two percent (2%) of the gross
17 annual retirement benefit of the volunteer
18 firefighter or One Hundred Dollars (\$100.00) for
19 persons who retired from the Oklahoma
20 Firefighters Pension and Retirement System as
21 volunteer firefighters and who did not retire
22 from the Oklahoma Firefighters Pension and
23 Retirement System as a paid firefighter.
24

1 As used in this subparagraph, "funded ratio" means the
2 figure derived by dividing the actuarial value of
3 assets of the applicable retirement system by the
4 actuarial accrued liability of the applicable
5 retirement system,

6 g. which modifies the disability pension standard for
7 police officers who are members of the Oklahoma Police
8 Pension and Retirement System as provided by Section
9 50-115 of Title 11 of the Oklahoma Statutes,

10 h. which provides a cost-of-living benefit increase
11 pursuant to the provisions of:

12 (1) Section 49-143.7 of Title 11 of the Oklahoma
13 Statutes,

14 (2) Section 50-136.9 of Title 11 of the Oklahoma
15 Statutes,

16 (3) Section 1104K of Title 20 of the Oklahoma
17 Statutes,

18 (4) Section 2-305.12 of Title 47 of the Oklahoma
19 Statutes,

20 (5) Section 17-116.22 of Title 70 of the Oklahoma
21 Statutes,

22 (6) Section 930.11 of Title 74 of the Oklahoma
23 Statutes,

24

- i. which modifies the computation of the line-of-duty disability benefit pursuant to the provisions of this section and Sections 50-101 and 50-115 of Title 11 of the Oklahoma Statutes, ~~or~~
- j. which authorizes membership in the Oklahoma Law Enforcement Retirement System for active commissioned or CLEET-certified agents of the Office of the Attorney General or the Military Department of the State of Oklahoma pursuant to Sections ~~3~~ 2-309.9 and 2-309.10 of ~~this act~~ Title 47 of the Oklahoma Statutes, or
- k. which modifies employer and employee contribution rates and expands eligibility for certain benefits pursuant to Sections 2 and 3 of this act.

A nonfiscal retirement bill shall include any retirement bill that has as its sole purpose the appropriation or distribution or redistribution of monies in some manner to a retirement system for purposes of reducing the unfunded liability of such system or the earmarking of a portion of the revenue from a tax to a retirement system or increasing the percentage of the revenue earmarked from a tax to a retirement system;

6. "Reduction-in-cost amendment" means an amendment to a retirement bill having a fiscal impact which reduces the cost of the

bill as such cost is determined by the actuarial investigation for the bill prepared pursuant to Section 3109 of this title;

7. "Retirement bill" means any bill or joint resolution introduced or any bill or joint resolution amended by a member of the Legislature which creates or amends any law directly affecting a retirement system. A retirement bill shall not mean a bill or resolution that impacts the revenue of any state tax in which a portion of the revenue generated from such tax is earmarked for the benefit of a retirement system;

8. "Retirement bill having a fiscal impact" means any retirement bill creating or establishing a retirement system and any other retirement bill other than a nonfiscal retirement bill; and

9. "Retirement system" means the Teachers' Retirement System of Oklahoma, the Oklahoma Public Employees Retirement System, the Uniform Retirement System for Justices and Judges, the Oklahoma Firefighters Pension and Retirement System, the Oklahoma Police Pension and Retirement System, the Oklahoma Law Enforcement Retirement System, or a retirement system established after January 1, 2006.

SECTION 2. AMENDATORY 47 O.S. 2021, Section 2-304, as last amended by Section 2, Chapter 45, O.S.L. 2025 (47 O.S. Supp. 2025, Section 2-304), is amended to read as follows:

Section 2-304. A. ~~Participating~~ Effective July 1, 2026, participating employers shall contribute ~~to the fund~~ an amount equal

1 to ~~eleven percent (11%)~~ a percentage of the actual paid base salary
 2 of each member- as follows:

3	<u>July 1, 2026, through June 30, 2027</u>	<u>12.5%</u>
4	<u>July 1, 2027, through June 30, 2028</u>	<u>13.5%</u>
5	<u>July 1, 2028, through June 30, 2029</u>	<u>14.5%</u>
6	<u>July 1, 2029, through June 30, 2030</u>	<u>15.5%</u>
7	<u>July 1, 2030, through June 30, 2031, and</u>	
8	<u>each year thereafter</u>	<u>16.5%</u>

9 B. Each member of the System shall make contributions to the
 10 fund in an amount equal to ~~eight percent (8%)~~ nine percent (9%) of
 11 the actual paid base salary of the member.

12 Member contributions shall be deducted by each participating
 13 employer for such benefits as the Board is by law authorized to
 14 administer and shall be remitted monthly, or as the Board may
 15 otherwise provide, for deposit in the fund.

16 C. Each employer shall pick up under the provisions of Section
 17 414(h) (2) of the Internal Revenue Code of 1986 and pay the
 18 contribution which the member is required by law to make to the
 19 System for all compensation earned after December 31, 1989.

20 Although the contributions so picked up are designated as member
 21 contributions, such contributions shall be treated as contributions
 22 being paid by the employer in lieu of contributions by the member in
 23 determining tax treatment under the Internal Revenue Code of 1986
 24 and such picked up contributions shall not be includable in the

gross income of the member until such amounts are distributed or made available to the member or the beneficiary of the member. The member, by the terms of this System, shall not have any option to choose to receive the contributions so picked up directly and the picked up contributions must be paid by the employer to the System.

Member contributions which are picked up shall be treated in the same manner and to the same extent as member contributions made prior to the date on which member contributions were picked up by the participating employer. Member contributions so picked up shall be included in gross salary for purposes of determining benefits and contributions under the System.

The employer shall pay the member contributions from the same source of funds used in paying salary to the member, by effecting an equal cash reduction in gross salary of the member.

SECTION 3. AMENDATORY 47 O.S. 2021, Section 2-305, as last amended by Section 9, Chapter 151, O.S.L. 2023 (47 O.S. Supp. 2025, Section 2-305), is amended to read as follows:

Section 2-305. A. Except as otherwise provided in this title, at any time after attaining normal retirement date, any member of the Oklahoma Law Enforcement Retirement System upon application for unreduced retirement benefits made and approved, may retire, and, during the remainder of the member's lifetime, receive annual retirement pay, payable in equal monthly payments, equal to two and one-half percent (2 1/2%) of the final average salary times years of

1 credited service. If such retired member is reemployed by a state
2 agency in a position which is not covered by the System, such
3 retired member shall continue to receive in-service distributions
4 from the System. Prior to September 19, 2002, if such retired
5 member was reemployed by a state agency in a position which is
6 covered by the System, such member shall continue to receive in-
7 service distributions from the System and shall not accrue any
8 further credited service. If such a member is reemployed by a state
9 agency in a position which is covered by the System on or after
10 September 19, 2002, such member's monthly retirement payments shall
11 be suspended until such member retires and is not reemployed by a
12 state agency in a position which is covered by the System.

13 B. Beginning July 1, 1994, members who retired or were eligible
14 to retire prior to July 1, 1980, or their surviving spouses shall
15 receive annual retirement pay, payable in equal monthly payments,
16 equal to the greater of their current retirement pay, or two and
17 one-half percent (2 1/2%) of the actual paid gross salary being
18 currently paid to a highway patrol officer, at the time each such
19 monthly retirement payment is made, multiplied by the retired
20 member's years of credited service.

21 C. Except as otherwise provided by this subsection, members of
22 the System whose salary is set by statute who have retired after
23 completion of the mandatory twenty (20) years of service, and those
24 members with statutory salaries who retire after reaching the

1 mandatory twenty-year retirement shall receive an annual retirement
2 pay, payable in equal monthly installments, based upon the greater
3 of either:

4 1. The top base salary currently paid to the highest
5 nonsupervisory position in the participating agency at the time each
6 such monthly retirement payment is made, limited to the annual
7 salary limit of the Economic Growth and Tax Relief Reconciliation
8 Act of 2001, as described in paragraph 9 of Section 2-300 of this
9 title, multiplied by two and one-half percent (2 1/2%), multiplied
10 by the number of years of credited service and fraction thereof for
11 the following positions:

- 12 a. Oklahoma Highway Patrolman,
- 13 b. Communications Dispatcher,
- 14 c. Capitol Patrolman,
- 15 d. Lake Patrolman, and
- 16 e. Oklahoma State Bureau of Investigation - Special Agent
17 or Criminalist; or

18 2. The member's final average salary as set forth in paragraph
19 9 of Section 2-300 of this title, multiplied by two and one-half
20 percent (2 1/2%), and multiplied by the number of years of credited
21 service and fraction thereof.

22 No member of the System retired prior to July 1, 2002, shall
23 receive a benefit less than the amount the member is receiving as of
24 June 30, 2002.

1 The provisions of paragraph 1 of this subsection shall ~~not be~~
2 ~~applicable to any member whose first participating service with the~~
3 ~~System occurs on or after November 1, 2012, except for~~ include those
4 members who died in the performance of their duties pursuant to
5 Section 2-306 of this title.

6 D. Other members of the System whose retirement benefit is not
7 otherwise prescribed by this section who have retired after
8 completion of the mandatory twenty (20) years of service, and those
9 members who retire after reaching the mandatory twenty-year
10 retirement shall receive an annual retirement pay, payable in equal
11 monthly payments, based upon the greater of either:

12 1. The actual average salary currently paid to the highest
13 nonsupervisory position in the participating agency at the time each
14 such monthly payment is made, limited to the annual salary limit of
15 the Economic Growth and Tax Relief Reconciliation Act of 2001, as
16 described in paragraph 9 of Section 2-300 of this title, multiplied
17 by two and one-half percent (2 1/2%), multiplied by the number of
18 years of credited service and fraction thereof for the following
19 positions:

20 a. Alcoholic Beverage Laws Enforcement Commission - ABLE
21 Commission Agent III,

22 b. Oklahoma State Bureau of Narcotics and Dangerous Drugs
23 Control - Narcotics Agent III,

- c. Oklahoma Tourism and Recreation Department - Park Ranger II,
- d. State Board of Pharmacy - Pharmacy Inspector,
- e. University of Oklahoma - Police Officer, ~~and~~
- f. Oklahoma State University - Police Officer,
- g. Attorney General Agent, and
- h. Military Department Police Officer; ~~or~~

2. The other member's final average salary as set forth in paragraph 9 of Section 2-300 of this title, multiplied by two and one-half percent (2 1/2%), multiplied by the number of years of credited service and fraction thereof.

No member of the System retired prior to July 1, 2002, shall receive a benefit less than the amount the member is receiving as of June 30, 2002. The participating employer must certify to the System in writing the actual average gross salary currently paid to the highest nonsupervisory position. The Board of Trustees shall promulgate such rules as are necessary to implement the provisions of this section.

The provisions of paragraph 1 of this subsection shall ~~not be applicable to any member whose first participating service with the System occurs on or after May 24, 2013, except for~~ include those members who died in the performance of their duties pursuant to Section 2-306 of this title.

1 E. A member who meets the definition of disability as defined
2 in paragraph ~~11~~ 12 of Section 2-300 of this title by direct reason
3 of the performance of the member's duties as an officer shall
4 receive a monthly benefit equal to:

5 1. Two and one-half percent (2 1/2%);

6 2. Multiplied by:

7 a. twenty (20) years of credited service, if the member
8 had performed less than twenty (20) years of credited
9 service, notwithstanding the actual number of years of
10 credited service performed by the member prior to the
11 date of disability, or

12 b. the actual number of years of credited service and
13 fraction thereof performed by the member prior to the
14 date of disability, if the member had performed twenty
15 (20) or more years of credited service;

16 3. Multiplied by the greater of subparagraph a of this
17 paragraph and division 1 of subparagraph b of this paragraph or
18 division 2 of subparagraph b of this paragraph, as applicable:

19 a. the final average salary of the member, as set forth
20 in paragraph 9 of Section 2-300 of this title, and

21 b. (1) the top base salary currently paid to the highest
22 nonsupervisory position in the participating
23 agency of the member at the time each monthly
24 payment is made, limited to the annual salary

1 limit of the Economic Growth and Tax Relief
2 Reconciliation Act of 2001 described in paragraph
3 9 of Section 2-300 of this title, for the
4 following positions:

- 5 (a) Oklahoma Highway Patrolman,
- 6 (b) Communications Dispatcher,
- 7 (c) Capitol Patrolman,
- 8 (d) Lake Patrolman, and
- 9 (e) Oklahoma State Bureau of Investigation -
10 Special Agent or Criminalist,

11 Provided, the participating employer must certify to the System
12 in writing the top base salary currently paid to the highest
13 nonsupervisory position for division (1) of subparagraph b of this
14 paragraph, or

- 15 (2) the actual average salary currently paid to the
16 highest nonsupervisory position in the
17 participating agency of the member at the time
18 each monthly payment is made, limited to the
19 annual salary limit of the Economic Growth and
20 Tax Relief Reconciliation Act of 2001, described
21 in paragraph 9 of Section 2-300 of this title,
22 for the following positions:

- 23 (a) Alcoholic Beverage Laws Enforcement (ABLE)
24 Commission - ABLE Commission Agent III,

(b) Oklahoma State Bureau of Narcotics and
Dangerous Drugs Control - Narcotics Agent
III,

(c) Oklahoma Tourism and Recreation Department -
Park Ranger II,

(d) State Board of Pharmacy - Pharmacy
Inspector,

(e) University of Oklahoma - Police Officer, and

(f) Oklahoma State University - Police Officer,

(g) Attorney General Agent, and

(h) Military Department Police Officer,

Provided, the participating employer must certify to the System
in writing the actual average gross salary currently paid to the
highest nonsupervisory position for division (2) of subparagraph b
of this paragraph;

4. No member of the System receiving benefits prescribed by
this subsection who retired prior to July 1, 2002, shall receive a
benefit of less than the amount the member was receiving as of June
30, 2002;

5. The Board of Trustees shall promulgate rules as necessary to
implement the provisions of this subsection; and

6. If such member participates in the Oklahoma Law Enforcement
Deferred Option Plan pursuant to Section 2-305.2 of this title, then
such member's disability pension provided pursuant to this

1 subsection shall be reduced to account for such member's
2 participation in the Oklahoma Law Enforcement Deferred Option Plan.

3 F. A member who meets the definition of disability as defined
4 in paragraph ~~11~~ 12 of Section 2-300 of this title and whose
5 disability is by means of personal and traumatic injury of a
6 catastrophic nature and in the line of duty, shall receive a monthly
7 benefit equal to:

8 1. Two and one-half percent (2 1/2%);

9 2. Multiplied by:

10 a. twenty (20) years of service, regardless of the actual
11 number of years of credited service performed by the
12 member prior to the date of disability, if the member
13 had performed less than twenty (20) years of service,
14 or

15 b. the actual number of years of service performed by the
16 member if the member had performed twenty (20) or more
17 years of service;

18 3. Multiplied by a final average salary equal to:

19 a. the salary which the member would have received
20 pursuant to statutory salary schedules in effect upon
21 the date of the disability for twenty (20) years of
22 service prior to disability. The final average salary
23 for a member who performed less than twenty (20) years
24 of service prior to disability shall be computed

1 assuming that the member was paid the highest salary
2 allowable pursuant to the law in effect at the time of
3 the member's disability based upon twenty (20) years
4 of service and with an assumption that the member was
5 eligible for any and all increases in pay based upon
6 rank during the entire period. If the salary of a
7 member is not prescribed by a specific salary schedule
8 upon the date of the member's disability, the final
9 average salary for the member shall be computed by the
10 member's actual final average salary or the highest
11 median salary amount for a member whose salary was
12 prescribed by a specific salary schedule upon the date
13 of the member's disability, whichever final average
14 salary amount would be greater, or

- 15 b. the actual final average salary of the member if the
16 member had performed twenty (20) or more years of
17 service prior to disability.

18 If such member participates in the Oklahoma Law Enforcement
19 Deferred Option Plan pursuant to Section 2-305.2 of this title, such
20 member's disability pension provided pursuant to this subsection
21 shall be adjusted as provided in Section 2-305.2 of this title to
22 account for such member's participation in the Oklahoma Law
23 Enforcement Deferred Option Plan.

1 G. A member who meets the definition of disability as defined
2 in Section 2-300 of this title and whose disability occurred prior
3 to the member's normal retirement date but after completing three
4 (3) years of vesting service and not by reason of the performance of
5 the member's duties or as a result of the member's willful
6 negligence shall receive a monthly benefit equal to two and one-half
7 percent (2 1/2%) of final average salary multiplied by the number of
8 years of the member's credited service.

9 H. Payment of a disability pension shall commence as of the
10 first day of the month coinciding or next following the date of
11 retirement and shall continue as long as the member meets the
12 definition of total and permanent disability provided in this
13 section.

14 I. For the purpose of determining the member's disability under
15 subsection E, F or G of this section, the member shall be required
16 by the Board to be examined by a minimum of two recognized
17 physicians selected by the Board to determine the extent of the
18 member's injury or illness. The examining physicians shall furnish
19 the Board a detailed written report of the injury or illness of the
20 examined member establishing the extent of disability and the
21 possibilities of the disabled member being returned to his or her
22 regular duties or an alternate occupation or service covered by the
23 System after a normal recuperation period. The Board shall require
24 all retired disabled members who have not attained their normal

1 retirement date to submit to a physical examination once each year
2 for a minimum of three (3) years following retirement. The Board
3 shall select a minimum of two physicians to examine the retired
4 members and pay for their services from the fund. Any retired
5 disabled member found no longer disabled by the examining physicians
6 to perform the occupation of the member or an alternate occupation
7 or service covered by the System shall be required to return to duty
8 and complete twenty (20) years of service as provided in subsection
9 A of this section, or forfeit all his or her rights and claims under
10 Section 2-300 et seq. of this title.

11 J. The disability benefit under this section shall be for the
12 lifetime of the member unless such member is found no longer
13 disabled pursuant to subsection I of this section. Such member
14 shall not be entitled to the retirement benefit pursuant to
15 subsection A of this section unless such member returns to active
16 duty and is eligible for a retirement benefit as provided in
17 subsection A of this section.

18 K. At the postoffer, preemployment physical examination
19 required under paragraph 6 of Section 2-300 of this title, the
20 physician selected by the Board shall determine the extent to which
21 a new member is disabled. If a member is determined to be partially
22 disabled, the physician shall assign a percentage of disability to
23 such partial disability. If such member then becomes entitled to a
24 disability benefit under either subsection E or subsection G of this

1 section, the benefit payable shall be reduced by the percentage
2 which such member was determined to be disabled at the postoffer,
3 preemployment physical unless the Board makes a determination that
4 the initially determined percentage of disability at the
5 preemployment physical examination is unrelated to the reason for
6 the disability currently sought pursuant to subsection E or
7 subsection G of this section. Upon employment, the member shall
8 disclose to the Board any disability payments received from any
9 source. The amount of disability to be paid to any member cannot
10 exceed one hundred percent (100%) disability from all sources. The
11 provisions of this subsection shall apply only to members whose
12 effective date of membership is on or after July 1, 2000.

13 L. In addition to the pension provided for under subsection F
14 of this section, if the member has one or more children under the
15 age of eighteen (18) years or under the age of twenty-two (22) years
16 if the child is enrolled full-time in and is regularly attending a
17 public or private school or any institution of higher education,
18 Four Hundred Dollars (\$400.00) a month shall be paid from the Fund
19 for the support of each surviving child to the member or person
20 having the care and custody of such children until each child
21 reaches the age of eighteen (18) years or reaches the age of twenty-
22 two (22) years if the child is enrolled full-time in and is
23 regularly attending a public or private school or any institution of
24 higher education.

1 M. Notwithstanding any other provisions in Section 2-300
2 through 2-315 of this title, in order to be eligible to receive
3 disability benefits, a member who meets the definition of disability
4 as defined in paragraph ~~11~~ 12 of Section 2-300 of this title shall
5 file the member's completed application for disability benefits with
6 the System before such member's date of termination from service and
7 provide such additional information that the System's rules require
8 within six (6) months of the System's receipt of such application.
9 If the member's completed application for disability benefits is not
10 filed with the System before the member's date of termination from
11 service or such additional information as is required under the
12 System's rules is not provided within six (6) months of the System's
13 receipt of such application, such member shall be eligible only for
14 such other benefits as are available to members of the System and
15 shall not be eligible to receive any disability benefits. For good
16 cause shown, the Board of Trustees may waive the requirement that
17 the disability application be filed before the member's date of
18 termination from service. In no event shall a member be eligible to
19 receive any disability benefit if the member's completed application
20 is filed more than six (6) months after the member's date of
21 termination from service.

22 N. If the requirements of Section 2-305.1C of this title are
23 satisfied, a member who, by reason of disability or attainment of
24 normal retirement date or age, is separated from service as a public

1 safety officer with the member's participating employer may elect to
2 have payment made directly to the provider for qualified health
3 insurance premiums by deduction from his or her monthly disability
4 benefit or monthly retirement payment, after December 31, 2006, in
5 accordance with Section 402(1) of the Internal Revenue Code of 1986,
6 as amended. For distributions made after December 29, 2022, the
7 election provided for under Section 402(1) of the Internal Revenue
8 Code of 1986, as amended, may be made whether payment of the
9 premiums is made directly to the provider of the accident or health
10 plan or qualified long-term care insurance contract by deduction
11 from a distribution from the System or is made to the member.

12 SECTION 4. If the Emergency Clause is not approved pursuant to
13 the requirements of the Oklahoma Constitution as part of this
14 measure, the effective date of Section 1 of this act shall be
15 October 1, 2026.

16 SECTION 5. If the Emergency Clause is not approved pursuant to
17 the requirements of the Oklahoma Constitution as part of this
18 measure, the effective date of Sections 2 and 3 of this act shall be
19 November 1, 2026.

20 SECTION 6. Except as otherwise provided by Section 4 of this
21 act, Section 1 of this act shall become effective immediately upon
22 signature by the Governor or as otherwise provided by Section 58 of
23 Article V of the Oklahoma Constitution.

1 SECTION 7. Except as otherwise provided by Section 5 of this
2 act, Sections 2 and 3 of this act shall become effective July 1,
3 2026.

4 SECTION 8. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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9 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
10 03/09/2026 - DO PASS, As Amended.
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